

BECM 3107**INDEMNITY AGREEMENT****Term Final Study Guide**

সহজ ব্যাখ্যা • প্রয়োজনীয় বাংলা অর্থ • স্মরণ কৌশল • প্রশ্নোত্তর

Course	Construction Contract and Law
Source lecture	Indemnity Agreement (22 slides/pages)
Designed for	Term-final understanding and fast revision
Included	Easy notes, Bangla meanings, mnemonics, model answers, MCQs

Prepared strictly from the uploaded lecture slides. Explanations simplify the lecture without changing its terminology.

Study method: Understand → Compare → Recall → Write

A. How to Use This Guide

এই গাইড ব্যবহারের নিয়ম

1. Understand First learn who gives protection and who receives it.	2. Compare Compare indemnitee vs indemnitor and implied vs express indemnity.
3. Memorize Use the short codes, Bangla meanings and relationship arrows.	4. Recall Close the guide and explain a topic in your own words.
5. Practise Write probable answers and solve MCQs without looking.	6. Revise Use the final master sheet before the examination.

MEMORY: Best exam-writing formula: D-P-S-I

Definition → Parties → Scope/rules → Insurance consequence. বাংলা: সংজ্ঞা → পক্ষসমূহ → পরিধি/নিয়ম → বীমার প্রভাব।

Master Lecture Map | পুরো লেকচারের মানচিত্র

Block	Main idea	Quick key
Meaning	Holding another harmless from legal consequences	Save from loss
Parties	Indemnitee receives protection; indemnitor assumes loss	TEE takes, TOR transfers
Types	Implied and express indemnity	I-E
Insurance	Contractual duty may exceed or affect insurance coverage	Match both
Agreement	Promise to pay liability and possibly defend	Pay + Defend
Scope	Depends on wording chosen by parties	Words control
Other protection	Additional insured, adequate limits, primary insurance	A-A-P
Court view	Strict and narrow construction; clarity is essential	Clear wording
Operation	Timely notices and good-faith defence/indemnity	N-N-G

1. Meaning of Indemnity

Indemnity-এর অর্থ

Indemnity means holding someone harmless for something. It is a contract by which one person agrees to save another from a legal consequence arising from the conduct of a party to the agreement or another person.

সহজ বাংলা: Indemnity হলো এমন ব্যবস্থা যেখানে এক পক্ষ অন্য পক্ষকে নির্দিষ্ট আইনগত দায়, দাবি বা ক্ষতির আর্থিক ফল থেকে রক্ষা করার অঙ্গীকার করে।

EXAM: One-line exam definition

Indemnity is a contractual arrangement to hold another party harmless from specified legal consequences or loss.

Simple Construction Example | সহজ নির্মাণ উদাহরণ

A general contractor agrees to protect the owner from a claim caused by the contractor's negligence. The owner receives the protection; the contractor assumes the specified responsibility.

KEY: Core idea: Who bears the loss?

An indemnity agreement allocates or transfers the burden of a defined loss between contracting parties.

2. Indemnatee and Indemnitor

Indemnatee ও Indemnitor

Term	Lecture meaning	Construction example	Bangla meaning
Indemnatee	The party claiming or receiving indemnity	Owner protected by general contractor	ক্ষতিপূরণ/সুরক্ষা গ্রহণকারী পক্ষ
Indemnitor	The party agreeing to assume responsibility for the loss	General contractor protecting owner	দায় বা ক্ষতি বহনের অঙ্গীকারকারী পক্ষ

Common Relationship Chains | সাধারণ সম্পর্ক

Relationship	Indemnitor	Indemnatee
General contractor → Owner	General contractor	Owner
Subcontractor → General contractor	Subcontractor	General contractor

MEMORY: TEE vs TOR

IndemniTEE receives/protected; indemniTOR transfers/assumes responsibility. বাংলা: “TEE নেয়, TOR দায় বহন করে।”

Arrow Technique | তীরচিহ্নে মনে রাখুন

Indemnitor — protection / payment / defence —► Indemnatee

যে দিক থেকে সুরক্ষা আসে = indemnitor; যে দিক সুরক্ষা পায় = indemnatee।

3. Why Indemnity Clauses Matter

Indemnity clause কেন গুরুত্বপূর্ণ

- They manage and allocate the risk borne by a party.
- Owners and contractors must read and understand the terms before signing.
- A party may otherwise carry the full burden of liability regardless of the other party's conduct.
- Indemnity obligations may extend beyond the risks and amounts covered by insurance.
- In some cases, indemnity wording may affect the insurance cover itself.

বাংলা সারাংশ: একটি ছোট indemnity clause অনেক বড় আর্থিক দায় স্থানান্তর করতে পারে; তাই স্বাক্ষরের আগে ভাষা, পরিধি ও বীমা কভারেজ বুঝতে হবে।

MEMORY: R-I-S-K

Read terms – Identify liability – See insurance – Know exposure.

Main Examination Point | পরীক্ষার মূল কথা

Indemnity and insurance are related but not identical. A contractual promise may be broader than the insurance that is available to pay for it.

4. Types of Indemnity

Indemnity-এর ধরন

Feature	Implied indemnity	Express indemnity
Source	Underlying contractual relationship and implied duty	Written indemnity or hold-harmless agreement
How it arises	Breach of an implied contractual duty	Specific language agreed by the parties
Example from lecture	Duty to perform work safely, carefully, skillfully and properly	Written promise to indemnify or hold another harmless
Scope	Based on implied duty and relationship	Depends on wording of the indemnity language

MEMORY: I-E

Implied = In the relationship/duty. Express = Explicitly written.

বাংলা: Implied indemnity লিখিত clause ছাড়াও অন্তর্নিহিত দায়িত্ব থেকে আসতে পারে; Express indemnity সরাসরি লিখিত চুক্তির ভাষা থেকে আসে।

5. Implied Contractual Indemnity

অন্তর্নিহিত চুক্তিগত Indemnity

Implied contractual indemnity is based on an underlying contractual relationship between the indemnitee and indemnitor. The indemnitor's liability arises from breach of an implied contractual duty owed to the indemnitee.

Examples Given in the Lecture | লেকচারের উদাহরণ

- An implied promise to perform contract work safely and carefully.
- An implied promise to perform contract services skillfully and properly.

FLOW: Relationship → Duty → Breach → Liability

First there is a contractual relationship; an implied duty exists; breach of that duty creates the indemnity responsibility.

Easy Construction Scenario | সহজ নির্মাণ পরিস্থিতি

A subcontractor is engaged to perform specialist work. Even without a detailed indemnity sentence, the relationship may carry an implied duty to perform safely and properly. Breach of that duty may create an indemnity claim under the lecture's concept.

Note: The slides explain the concept generally and do not provide jurisdiction-specific tests or case law.

6. Express Contractual Indemnity

স্পষ্ট/লিখিত চুক্তিগত Indemnity

Express contractual indemnity is based on a written agreement by one person to indemnify or hold another harmless from the legal consequences of conduct.

EXAM: Words control scope

The scope of express indemnity depends on the exact wording of the indemnity language.

Common Words to Recognize | যে শব্দগুলো চিনবেন

Phrase	Easy meaning	বাংলা
Indemnify	Pay or compensate for specified liability/loss	নির্দিষ্ট দায়/ক্ষতি বহন বা ক্ষতিপূরণ করা
Hold harmless	Keep the protected party free from specified liability	নির্দিষ্ট দায় থেকে রক্ষা করা
Defend	Provide or pay for defence in a claim/litigation, if promised	দাবি/মামলায় প্রতিরক্ষা দেওয়া

MEMORY: D-H-I

Defend – Hold harmless – Indemnify. বাংলা: মামলা মোকাবিলা – দায়মুক্ত রাখা – ক্ষতি বহন।

7. Express Indemnity and Insurance Coverage

Express indemnity ও বীমা কভারেজ

According to the lecture, when an express indemnity agreement applies to a loss and both parties' general liability policies also apply, the indemnitor's policy is treated as primary coverage unless a prior written agreement states otherwise.

সহজ বাংলা: Express indemnity কার্যকর এবং উভয় পক্ষের liability insurance প্রযোজ্য হলে, বিপরীত লিখিত ব্যবস্থা না থাকলে indemnitor-এর policy আগে pay করবে।

KEY: Primary = Pays first

Primary insurance responds before the other applicable insurance, subject to the lecture's stated absence of a contrary prior written agreement.

Exam Sequence | পরীক্ষায় ধাপ

1. Check whether the express indemnity applies to the loss.
2. Check whether both liability policies apply.
3. Check for a prior written agreement changing priority.
4. If none, identify the indemnitor's policy as primary under the lecture rule.

8. What Is an Indemnity Agreement?

Indemnity agreement की

An indemnity agreement is an express contractual promise by the indemnitor to pay for the liability of the indemnitee.

It may also include a promise to defend the indemnified party in a claim or litigation.

Possible obligation	What it means	When it matters
Pay / indemnify	Bear the covered liability, loss, judgment or expense	After or in relation to an identified loss
Defend	Handle or fund the legal defence	When a claim or court action is brought
Hold harmless	Keep the indemnitee relieved of specified liability	According to the terms of the agreement

MEMORY: P-D-H

Pay – Defend – Hold harmless. Not every clause necessarily contains all three; read the actual wording.

9. Key Governing Principles

মূল নিয়ন্ত্রণকারী নীতি

- An indemnity agreement determines who will bear the loss.
- Indemnity agreements are generally governed by the law of contracts.
- If indemnity is provided under a contract, the provision must be clear.
- An express contract provision ordinarily controls over equitable or fair principles.
- The indemnitor's liability is determined by the provisions of the agreement.

MEMORY: L-C-T

Loss bearer – Contract law – Terms control.

Why Clarity Is Central | স্পষ্টতা এত গুরুত্বপূর্ণ কেন

The clause may shift major legal and financial responsibility. Therefore, the lecture repeatedly stresses clear language so that the parties and the court can identify what was actually promised.

বাংলা: Clause অস্পষ্ট হলে কে কোন দায় নেবে তা নিয়ে বিরোধ তৈরি হয়; তাই পরিষ্কার শব্দ সবচেয়ে গুরুত্বপূর্ণ।

10. Holding Harmless and Contract Terms

Hold harmless ও চুক্তির শর্ত

The key concept is holding the indemnitee harmless and relieving it of liability according to the agreement's terms. The indemnitor is not automatically responsible for every possible loss. Responsibility is determined by the scope and provisions that the parties actually agreed.

EXAM: No clause, no assumed scope

Do not enlarge or reduce an indemnity merely by intuition; identify the written promise and its limits.

Questions to Ask While Reading a Clause | Clause পড়ার সময় প্রশ্ন

- Who is the indemnitor and who is the indemnitee?
- What conduct, risk, claim or loss triggers the obligation?
- Does the clause include defence, indemnity and hold-harmless duties?
- Is the obligation limited to the indemnitor's negligence?
- Are there monetary, time or insurance-related limits?

11. Insurance Consequences

বীমার প্রভাব

- Many policies may specifically exclude liability incurred under a contractual indemnity.
- Insurance may not cover all categories of risk assumed in the contract.
- Insurance may not cover all categories of loss, damage or exposure accepted by the indemnitor.
- Indemnity obligations and insurance coverage should match.
- A mismatch may leave a party personally exposed to major financial risk.

WARNING: Contract promise $\neq$ automatic insurance

Signing an indemnity does not prove that an insurer will pay it. Check the policy before signing.

Match Test | মিল যাচাই

Contract question	Insurance question
What risk have I promised to assume?	Does my policy cover that risk?
How broad is the indemnity amount/scope?	Are policy limits and terms sufficient?
Must I defend immediately?	Does the policy provide defence for this obligation?
Could the clause affect coverage?	Has the insurer reviewed the contract wording?

12. Four Questions to Ask Before Signing

স্বাক্ষরের আগে চার প্রশ্ন

1. Is the indemnity manageable?
2. Does it affect your insurance?
3. Are you covered by insurance for the risk?
4. If not, are you prepared to run the risk of the indemnity being called upon?

MEMORY: M-A-C-R

Manageable? Affect insurance? Covered? Ready for uncovered risk?

Practical Reading Routine | ব্যবহারিক পড়ার পদ্ধতি

Step 1: Mark parties Circle indemnitor and indemnitee.	Step 2: Mark trigger Underline the event, claim, negligence or conduct.
Step 3: Mark duties Highlight defend, hold harmless and indemnify.	Step 4: Mark limits Note insurance, monetary, time and scope limits.

13. Why Obtain an Indemnity Agreement?

কেন **Indemnity agreement** নেওয়া হয়

The lecture explains that an indemnitee seeks the agreement so it does not have to pay a claim or judgment attributable to the indemnitor's negligence on the indemnitee's property or otherwise.

সহজ বাংলা: অন্য পক্ষের negligence-এর কারণে আপনার বিরুদ্ধে claim বা judgment হলে সেই আর্থিক দায় যেন আপনাকে বহন করতে না হয়—এই সুরক্ষার জন্য indemnity নেওয়া হয়।

KEY: Purpose: Shift attributable loss

The clause aims to place the specified loss on the party whose promised responsibility or negligence gives rise to it.

Owner–Contractor Example | Owner–Contractor উদাহরণ

If the contractor's negligent site operation causes a third-party claim against the owner, an applicable indemnity may require the contractor to defend and/or compensate the owner according to the clause.

14. Giving an Indemnity

Indemnity দেওয়ার আগে

WARNING: Check insurance first

Before agreeing to indemnify someone, check whether your insurance actually covers that contractual promise. Otherwise, you may be personally exposed to the loss.

Risk Checklist for the Indemnitor | Indemnitor-এর checklist

- Read the full clause, not only the heading.
- Identify whether the duty includes defence costs.
- Identify whether it covers only your negligence or broader claims.
- Compare the promise with exclusions and limits in your insurance policy.
- Include any uninsured exposure in the commercial decision before signing.

The last two points are practical study guidance inferred from the lecture's repeated instruction to match indemnity obligations with insurance coverage.

15. Scope of an Indemnity Agreement

Indemnity-এর পরিধি

The contracting parties decide the scope. The lecture highlights two central drafting choices:

- Will the indemnity be limited to the negligence of the indemnifying party?
- Will it require the party to “defend, hold harmless and indemnify” against any claim brought against the indemnitee?

Narrower approach	Broader approach
Limited to the indemnitor's negligence	Applies to a wider class of claims as stated
Responsibility linked to defined conduct	May include immediate duty to defend
Lower uncertainty if clearly drafted	Greater risk of overreach and insurance mismatch

MEMORY: Scope = Trigger + Duty + Limit

Trigger: what event? Duty: defend/indemnify/hold harmless? Limit: negligence, amount, time or insurance?

16. Other Protections Alongside Indemnity

Indemnity-এর পাশাপাশি অন্য সুরক্ষা

Protection	Lecture explanation	Why useful
Additional insured	Ask the other party to add you to its liability policy	You receive protection under that policy if a claim arises
Adequate limits	Require sufficient per-occurrence and aggregate limits	Enough insurance money may be available for losses
Primary insurance	Require the other party's insurance to pay before yours	Protects your policy and reduces financial risk

MEMORY: A-A-P

Additional insured – Adequate limits – Primary insurance.

Per Occurrence vs Aggregate | প্রতি ঘটনা বনাম মোট সীমা

Per occurrence is the limit available for each accident or occurrence. Aggregate is the total limit available for all claims during the policy period, as described in the lecture.

17. How Courts Interpret Indemnity Agreements

আদালত কীভাবে ব্যাখ্যা করে

- Courts interpret indemnification provisions very narrowly.
- They use strict construction because provisions can be broad and over-reaching.
- Clear wording is repeatedly emphasized.
- Some courts refuse to apply a provision indemnifying a party against its own negligence.
- Other courts refuse to enforce provisions covering a party's own intentional act.

MEMORY: Strict + Narrow + Clear

Because indemnity can shift substantial responsibility, courts may not extend it beyond clear language.

Important: The slides use "some courts" and do not identify a single universal jurisdictional rule. In an exam answer, preserve that cautious wording.

18. How Indemnity Agreements Work After a Claim

Claim হলে কীভাবে কাজ করে

1. The indemnitee gives timely notice of the claim to the indemnitor.
2. The relevant party gives timely notice to its insurance company.
3. The indemnitor performs its contractual obligation to defend and indemnify in good faith.

MEMORY: N-N-G

Notice to indemnitor – Notice to insurer – Good-faith defence/indemnity.

Simple Flow | সহজ ধারা

Claim received → Contract checked → Notices sent → Coverage checked → Defence/indemnity performed according to terms

“Timely” is emphasized in the lecture, but the slides do not state a fixed number of days.

19. Final Rules on Wording

Clause-এর ভাষা নিয়ে শেষ নিয়ম

Rule	Lecture point	Exam meaning
Plain language	Broad-form indemnity must be stated plainly	The promise should be understandable and unambiguous
Eye-catching	Broad-form clause should be bolded, highlighted or in large print	Important risk transfer should not be hidden
Consideration	There must be identifiable financial payment or consideration	The contractual promise requires consideration

MEMORY: P-E-C

Plain language – Eye-catching – Consideration.

Model Drafting Review Questions | পর্যালোচনা প্রশ্ন

- Is the broad obligation written in plain language?
- Is it visually noticeable in the contract?
- Is consideration identifiable?
- Does the wording clearly define parties, trigger, duties and limits?

20. Master Comparison Tables

মূল তুলনামূলক ছক

Indemnatee vs Indemnitor | Indemnatee বনাম Indemnitor

Point	Indemnatee	Indemnitor
Role	Receives or claims protection	Promises or assumes responsibility
Typical example	Owner protected by contractor	Contractor protecting owner
Main concern	Will the clause and insurance protect me?	Can I manage and insure the promised risk?
Memory	TEE takes protection	TOR transfers/assumes loss

Indemnity vs Insurance | Indemnity বনাম Insurance

Point	Indemnity agreement	Insurance policy
Nature	Contractual allocation of liability between parties	Contract with insurer for covered losses
Scope	Determined by indemnity wording	Determined by policy coverage, limits and exclusions
Potential mismatch	May be broader than available cover	May exclude contractual indemnity liability
Key action	Read before signing	Confirm coverage before promising

21. Important Vocabulary with Bangla Meanings

গুরুত্বপূর্ণ শব্দার্থ

English term	Bangla meaning	Easy reminder
Indemnity	ক্ষতিপূরণ/দায় থেকে সুরক্ষার ব্যবস্থা	Save from specified legal loss
Indemnitee	সুরক্ষা বা indemnity গ্রহণকারী পক্ষ	TEE takes
Indemnitor	দায় বহনের অঙ্গীকারকারী পক্ষ	TOR transfers/assumes
Hold harmless	দায়মুক্ত বা ক্ষতিমুক্ত রাখা	Keep protected
Defend	আইনগত দাবি বা মামলায় প্রতিরক্ষা করা	Handle defence
Liability	আইনগত দায়	Legal responsibility
Claim	দাবি	Demand for relief/payment
Judgment	আদালতের রায়/দায় নির্ধারণ	Court decision
Negligence	অবহেলা	Failure to use due care
Intentional act	ইচ্ছাকৃত কাজ	Deliberate conduct
Implied duty	অন্তর্নিহিত দায়িত্ব	Duty not fully written
Express agreement	স্পষ্ট লিখিত চুক্তি	Explicit wording
Primary coverage	প্রথমে পরিশোধকারী কভারেজ	Pays first
Additional insured	অতিরিক্ত বীমাভুক্ত পক্ষ	Added to another policy
Per occurrence	প্রতি ঘটনা কভারেজ সীমা	Limit for one event
Aggregate	পলিসি সময়ে মোট সীমা	Total policy-period limit
Strict construction	কঠোর/সংকীর্ণ ব্যাখ্যা	No extension beyond clear words
Consideration	চুক্তির বিনিময়মূল্য/প্রতিদান	Something of value
Good faith	সদ্বাবে দায়িত্ব পালন	Honest performance

22. Memorization Systems

স্মরণ কৌশল

TEE-TOR TEE receives protection; TOR assumes responsibility.	I-E Implied duty vs Express written promise.
D-H-I Defend, Hold harmless, Indemnify.	M-A-C-R Manageable, Affect insurance, Covered, Ready for risk.
A-A-P Additional insured, Adequate limits, Primary insurance.	N-N-G Notice to indemnitor, Notice to insurer, Good faith.
P-E-C Plain language, Eye-catching, Consideration.	D-P-S-I Definition, Parties, Scope, Insurance consequence.

Story Method | গল্পে মনে রাখুন

“TOR দায়িত্ব নেয়, TEE সুরক্ষা পায়। Clause implied বা express হতে পারে। Express হলে words scope ঠিক করে। Claim এলে notice দুদিকে যায়, indemnitor good faith-এ defend/indemnify করে; কিন্তু আগে insurance match করতে হবে।”

Active Recall Prompts | বই বন্ধ করে বলুন

- Define indemnity in one sentence.
- Give one owner–contractor and one contractor–subcontractor example.
- Explain implied and express indemnity without notes.
- List four pre-signing questions.
- List three other protections and three wording rules.

23. Model Answer Structures

মডেল উত্তর কাঠামো

Q1. Define indemnity and explain its parties. | Indemnity সংজ্ঞা ও পক্ষ

Opening: Indemnity is a contractual arrangement by which one party agrees to hold another harmless from specified legal consequences or loss. The party receiving protection is the indemnitee, while the party assuming responsibility is the indemnitor. For example, where a general contractor indemnifies an owner, the contractor is the indemnitor and the owner is the indemnitee. The clause determines who bears the defined loss, so its wording must be clear.

Q2. Distinguish implied and express indemnity. | Implied ও Express পার্থক্য

Opening: Implied indemnity arises from an underlying contractual relationship and breach of an implied duty, such as a duty to perform safely and skillfully. Express indemnity arises from a written agreement to indemnify or hold another harmless. The scope of express indemnity depends on the wording of the clause. Therefore, implied indemnity focuses on the underlying duty, while express indemnity focuses on explicit language.

Q3. Discuss indemnity and insurance. | Indemnity ও insurance

Opening: Indemnity and insurance both deal with financial risk, but they are separate contracts. The indemnity allocates liability between contracting parties, whereas the insurance policy covers only risks within its terms, limits and exclusions. Contractual indemnity may exceed insurance coverage, and some policies may exclude such liability. The parties should therefore match the indemnity obligation with available insurance before signing.

24. Probable Long Questions and Answer Points

সম্ভাব্য বড় প্রশ্ন

Probable question	Answer points to include
What is indemnity? Explain indemnitee and indemnitor.	Definition; hold harmless; parties; owner/GC and GC/sub examples; loss allocation.
Explain implied and express contractual indemnity.	Two types; underlying relationship; implied duty/breach; written agreement; wording controls scope.
Why are indemnity clauses important in construction?	Risk allocation; read before signing; burden of liability; may exceed/affect insurance.
What is an indemnity agreement and what duties may it contain?	Express promise; pay liability; defend; hold harmless; terms determine responsibility.
Explain insurance consequences of indemnity.	Policy exclusions; uncovered risks/losses; match obligations and insurance; personal exposure.
Discuss the scope of an indemnity agreement.	Parties decide; limited negligence vs broad claims; D-H-I; wording and clarity.
What other protections support indemnity?	Additional insured; adequate per-occurrence and aggregate limits; primary insurance.
How do courts interpret indemnity provisions?	Narrowly; strict construction; clarity; some courts reject own negligence/intentional act protection.
How does an indemnity agreement operate after a claim?	Timely notice to indemnitor; notice to insurer; good-faith defence and indemnity.
State final requirements for broad-form wording.	Plain language; eye-catching presentation; consideration.

EXAM: Answer order

Definition → Rule/type → Construction example → Insurance/court consequence → Conclusion.

25. Short Questions for Practice

সংক্ষিপ্ত প্রশ্ন অনুশীলন

1. What does “hold harmless” mean?
2. Who is an indemnitee?
3. Who is an indemnitor?
4. Give one contractor–owner indemnity example.
5. Name the two types of indemnity.
6. What creates implied contractual indemnity?
7. What determines the scope of express indemnity?
8. What is primary insurance coverage?
9. Can an indemnity agreement include a duty to defend?
10. Why must an indemnity provision be clear?
11. What is the main insurance danger of contractual indemnity?
12. State the four questions to ask before signing.
13. Why does an indemnitee seek an indemnity agreement?
14. What choices determine the scope of an indemnity?
15. What does “additional insured” mean in the lecture?
16. Distinguish per-occurrence and aggregate limits.
17. How do courts generally construe indemnity provisions?
18. What notices are required after a claim?
19. What does good faith performance mean in this context?
20. State the P-E-C wording requirements.

26. MCQ Practice - Part 1

MCQ অনুশীলন - ১

1. The party receiving indemnity is the:
A. Insurer B. Indemnatee C. Indemnitor D. Claimant
2. The party assuming responsibility for the loss is the:
A. Indemnitor B. Indemnatee C. Court D. Owner only
3. The two lecture types of indemnity are:
A. Civil and criminal B. Direct and indirect C. Implied and express D. Primary and excess
4. Implied indemnity is based mainly on:
A. A newspaper notice B. An underlying contractual relationship and implied duty C. A premium receipt D. A court judgment only
5. Express indemnity is based on:
A. A written agreement B. Silence C. Accident statistics D. Oral evidence only
6. The scope of express indemnity depends on:
A. Project size only B. Wording of the indemnity language C. Number of workers D. Insurance premium only
7. An indemnity agreement may include a promise to:
A. Defend the indemnitee B. Avoid every lawsuit C. Remove all risk D. Guarantee project profit
8. An indemnity agreement primarily determines:
A. Who bears the loss B. Project schedule C. Design quality D. Tender price
9. The lecture says indemnity provisions should be:
A. Hidden B. Unclear C. Clear D. Oral only
10. Contractual indemnity may:
A. Always be fully insured B. Extend beyond insurance coverage C. Eliminate negligence D. Replace all contracts

27. MCQ Practice - Part 2

MCQ অনুশীলন - ২

11. Before giving an indemnity, a party should first check:

A. Weather B. Whether insurance covers the promise C. Number of drawings D. Office location

12. Which is NOT one of the lecture's four pre-signing questions?

A. Is it manageable? B. Does it affect insurance? C. Is the bid lowest? D. Are you covered?

13. Additional-insured status means:

A. Joining the construction team B. Being added to another party's liability policy C. Increasing salary D. Becoming indemnitor

14. "Per occurrence" relates to:

A. Limit for each accident/event B. Total project duration C. Annual premium only D. Number of parties

15. Primary insurance is intended to:

A. Pay after all other policies B. Pay first C. Never pay claims D. Cover design only

16. Courts generally interpret indemnity provisions:

A. Broadly without wording B. Narrowly and strictly C. As insurance policies D. Without contracts

17. The lecture cautions that some courts reject indemnity for a party's own:

A. Intentional act B. Invoice C. Tender D. Schedule

18. After a claim, notice should be given timely to:

A. Indemnitor and insurance company B. Supplier only C. Newspaper D. No one

19. Broad-form indemnity should be:

A. Hidden in small print B. Plain and eye-catching C. Unwritten D. Without consideration

20. P-E-C stands for:

A. Policy–Exclusion–Claim B. Plain language–Eye-catching–Consideration C. Payment–Estimate–Cost D. Party–Event–Court

Answer Key | উত্তর

1-B, 2-A, 3-C, 4-B, 5-A, 6-B, 7-A, 8-A, 9-C, 10-B, 11-B, 12-C, 13-B, 14-A, 15-B, 16-B, 17-A, 18-A, 19-B, 20-B.

28. True/False and Scenario Practice

সত্য-মিথ্যা ও পরিস্থিতি

True or False | সত্য না মিথ্যা

1. Indemnitee is the party that assumes responsibility for the loss.
2. Express indemnity depends on written wording.
3. Insurance automatically covers every contractual indemnity.
4. An indemnity may include a duty to defend.
5. Courts may use strict construction when interpreting indemnity provisions.
6. Timely notice is irrelevant after a claim.
7. Broad-form indemnity should be eye-catching.
8. Consideration is mentioned as a wording requirement in the lecture.

Answers: 1-False, 2-True, 3-False, 4-True, 5-True, 6-False, 7-True, 8-True.

Scenario 1 | পরিস্থিতি ১

A subcontractor agrees in writing to defend and indemnify the general contractor for claims caused by the subcontractor's negligence. A covered accident occurs. Identify the parties, type of indemnity and possible duty.

Model: Subcontractor = indemnitor; general contractor = indemnitee; express indemnity; duties may include defence and payment/indemnity according to wording.

Scenario 2 | পরিস্থিতি ২

A contractor signs a broad clause but its policy excludes some contractual indemnity liability. What is the main risk?

Model: The contract obligation may remain while insurance does not pay, leaving the contractor personally exposed.

29. One-Page Master Revision

এক পাতায় চূড়ান্ত রিভিশন

Topic	Must remember
Meaning	Hold another harmless from specified legal consequences/loss.
Parties	Indemnatee receives; indemnitor assumes.
Types	Implied = underlying duty; Express = written promise.
Core duties	Defend, hold harmless, indemnify - as worded.
Control	Agreement terms and clear wording determine scope.
Insurance	Obligation may exceed or be excluded by insurance; match both.
Pre-sign questions	Manageable? Affects insurance? Covered? Ready for uncovered risk?
Scope	Negligence-limited or broader claims; parties decide.
Other protection	Additional insured, adequate limits, primary insurance.
Court view	Narrow/strict interpretation; some own-negligence/intentional-act clauses refused.
After claim	Timely notice to indemnitor and insurer; good-faith performance.
Wording	Plain, eye-catching, consideration.

FINAL: Final memory sentence

“TEE সুরক্ষা নেয়, TOR দায় নেয়; implied duty বা express words scope ঠিক করে; insurance match, notice timely, wording clear.”

Last-Night 10-Minute Test | শেষ রাতের পরীক্ষা

1. Write the definition and parties from memory.
2. Draw the TEE–TOR arrow.
3. Write the implied vs express table.
4. Write M-A-C-R, A-A-P, N-N-G and P-E-C expansions.
5. Answer one long question using D-P-S-I.

30. Final Study Plan

চূড়ান্ত পড়ার পরিকল্পনা

Session	Task	Time
Session 1	Meaning, parties, importance and types	35 min
Session 2	Express/implied, insurance interaction and key principles	40 min
Session 3	Scope, protections, courts, claim process and wording	40 min
Session 4	Vocabulary, model answers and probable questions	35 min
Session 5	MCQs, scenarios and one-page revision	30 min

STUDY: Spaced revision

Revise after 1 day, 3 days and 7 days. Each time, recall first and then check the guide.

Best wishes for your term final examination.

ভালোভাবে বুঝে লিখুন—শুধু মুখস্থ নয়।